

IFFCO KISAN LOGISTICS LIMITED

Regt: office: 'IFFCO Sadan', C-1 Distt. Centre, Saket, New Delhi-110 017.
Tel: 011-42592653; e mail: feedback.ikll@iffco.in Website: www.iklltd.com
[CIN: U74999DL2004PLC124867]

NOTICE OF THE EIGHTEENTH ANNUAL GENERAL MEETING

TO THE MEMBERS

NOTICE is hereby given that the **Eighteenth Annual General Meeting** of Members of **IFFCO Kisan Logistics Limited** will be held at its Registered Office at 'IFFCO Sadan', C-1, District Centre, Saket, New Delhi-110017 **on June 20, 2022(Monday) at 4.30 PM** at Shorter Notice u/s 101 (1) of the Companies Act, 2013 through Video Conferencing ("VC") / other Audio Visual Means ("OAVM") to transact the following business:

ORDINARY BUSINESS:

1. To receive, consider and adopt the Audited Financial Statements of the Company as at March, 31st 2022 together with the Auditors' Report thereon and the Report of the Board of Directors to the Members.
2. (a) To appoint a Director in place of Sh. Rakesh Kapur (DIN: 00007230) who retires by rotation and is eligible for reappointment.

(b) To appoint a Director in place of Sh. Sunil Khatri (DIN: 06903603) who retires by rotation and is eligible for reappointment.
3. To appoint Statutory Auditors of the Company and to consider and if thought fit, to pass the following Resolution with or without modification, as an Ordinary Resolution:

"RESOLVED THAT pursuant to section 139 (2)(b) of the Companies Act, 2013 read with Rule 5 of the Companies (Audit & Auditors) Rules 2014, the

Members hereby approve re-appointment of M/s S.Tekriwal & Associates (CA Firm) (Regt.No.009612N) as Statutory Auditor-IKLL for second consecutive term of five years w.e.f April 1, 2022 and ending March 31, 2027 to hold office till the conclusion of Twenty Third Annual General Meeting at Audit Fees of Rs. 60,000/-p.a. & Tax Audit Fees of Rs. 30,000/-p.a. plus GST as applicable, reimbursement of Travelling, Food, Lodging and Out of pocket expenses. “

SPECIAL BUSINESS:

4. REAPPOINTMENT OF SH. R.P.SINGH(DIN:03016827) AS MANAGING DIRECTOR – IKLL U/S 196 OF THE COMPANIES ACT, 2013.

To pass with or without modification, the following resolutions as Ordinary Resolutions:

“**RESOLVED THAT** consent be and is hereby granted by Members for reappointment of Sh. R.P.Singh (**DIN: 03016827**) as Managing Director- IKLL w.e.f. July 1, 2022 pursuant to section(s)196, 197 & other applicable provisions read with Schedule V of the Companies Act 2013 & Article 92 of Articles of Association of the Company .

RESOLVED FURTHER THAT Sh.R.P.Singh(**DIN:03016827**) shall not be paid any remuneration for holding the office of Managing Director of the company.

RESOLVED FURTHER THAT the Board of Directors of the company be and is hereby authorised to do all such acts, deeds and things as may be necessary for the purpose of giving effect to this resolution.”

5. RELATED PARTY TRANSACTION U/S 188 OF THE COMPANIES ACT, 2013:
(i.)APPROVE PAYMENT OF REVISED RATES FOR WAREHOUSING AND CARGO HANDLING CHARGES FOR CAPTIVE CARGO-IKLL:

To pass with or without modification, the following resolutions as Ordinary Resolutions:

“RESOLVED THAT pursuant to sec. 188 (1)(d) of the Companies Act, 2013 and other applicable provisions if any, read with Rule 15 (1) (e) & 15(3) (iv) of The Companies (Meetings of Board and its Powers) Rules, 2014 approval of Members be and is hereby accorded for adoption of revised Handling and Storages Charges to be paid by IFFCO (Holding Enterprise-Related Party) for Captive Cargo handled at IKLL Jetty at Kandla in its Ordinary Course of business and at Arm's Length Transaction as per following Terms of Transaction.

RESOLVED THAT the proposal for revision of the Handling Charges on Imported Shipments of IFFCO (Holding Enterprise- Related Party) to be handled through IKLL Jetty, Kandla to Rs. 70.63 PMT plus the annual Indexation of 0.33% thereon and the Storage Charges at IKLL Jetty Godowns to be at par with the existing rates applicable at Bander Basin, Deendayal Port Authority, Kandla as detailed in the Agenda, all rates exclusive of GST, effective from 11th July, 2021 upto 10th July, 2024 subject to an indexation on the respective rates as per **Table-1** below, with all other terms and conditions remaining un-changed, be and is hereby approved.

Table-1

Name of the Related Party	Relationship	Maximum Value of Transaction (Rs.)	Manner of determining the pricing and other terms
Indian Farmers Fertiliser Cooperative Limited (IFFCO)	Holding Enterprise	Rs.53.69 Cr/(+) (-) 10%	i.) <u>Handling Charges</u>- As per TAMP Order dt: June 11, 2021/ published in the Gazette of India Notification -G No. 231/ Case No. TAMP/59/2020- IKLL ii.) <u>Storage Charges</u>- Scale of Rates (SOR) as applicable for Bander Basin, Deen Dayal Port Trust, Kandla.

Nature and Material Terms of the Transaction			
Particulars	Revised Rates		
Handling Charges (Rs/ MT)	Rs. 70.63 PMT (Indexation Factor @ 0.33%)		
Storage Charges (Rs./PMT/ Day basis)	0-5 days	-	Free
	6-12 days	-	4.21 /-
	13-19 days	-	6.31/-
	20-26 days	-	8.41/-
	27-33 days	-	16.81/-
	34-40 days	-	33.62/-
	41-47 days	-	67.25/-
	48 th day onwards	-	134.50/-

- All rates exclusive of GST.
 - Effective from 11th July, 2021 upto 10th July ,2024 subject to an Indexation on the respective rates.

RESOLVED FURTHER THAT the proposal to raise Invoice on IFFCO by IKLL towards differential amount of Handling rates & Storage charges retrospectively from July 11th , 2021 be and is hereby approved.”

ii.) PROPOSAL FOR SALE/ PURCHASE OF ROCK PHOSPHATE FROM IFFCO PARADEEP UNIT BY IKLL:

To pass with or without modification, the following resolutions as Ordinary Resolutions:

“RESOLVED THAT the proposal for Purchase of Rock Phosphate by IKLL from IFFCO Paradeep Unit ,being a Related Party Transaction u/s 188 of the Companies Act, 2013 on Ex-Works, Paradeep basis @1.10 times of CFR India price of Rock Phosphate of the latest shipment Imported by Paradeep Unit plus GST as applicable , as explained in the Agenda Note,be and is hereby approved by the Members for entering into Agreement in the ordinary course of business and at arm’s length pricing principle w.e.f 11/05/2022.

RESOLVED FURTHER THAT approval be and is hereby granted by the Board for entering into Agreement by Managing Director-IKLL with IFFCO Paradeep Unit on the above terms and conditions for Purchase of Rock Phosphate.”

By order of the Board
For IFFCO Kisan Logistics Limited

Registered Office:
IFFCO Sadan, C-1,
Distt: Centre, Saket,
New Delhi- 110017
Dt: 17/06/2022



(Chairman)
DIN:00026019

NOTES:

1. Due to COVID-19 pandemic ,The Ministry of Corporate Affairs (MCA) has vide Circular dt:05/05/2022 permitted the holding of Annual General Meeting (AGM) through VC/ OAVM, without the physical presence of the Members at a common venue .Pursuant to compliance with the provisions of the Companies Act, 2013 & MCA circulars the AGM of the Company is being held thru VC/ OAVM.
2. The physical attendance of Members have been dispensed with as the AGM is pursuant to the above MCA Circulars. Accordingly, the facility for appointment of proxies by Members will not be available for this AGM,so the proxy form & attendance slip are not annexed to this Notice.
3. Notice of AGM alongwith Annual Report 2021-22 and Annexures is being sent thru electronic mode and physical copies wherever possible.
4. Members attending the AGM through VC/ OAVM shall be counted for the purpose of reckoning the quorum u/s 103 of the Companies Act, 2013.

5.The Explanatory Statement pursuant to section 102(1)of the Companies Act, 2013 relating to Special Business to be transacted at the Meeting is annexed hereto.

6.Members are informed that as per Notification of Ministry of Corporate Affairs(MCA) New Delhi dt: 10th September , 2018 all equity shares of IFFCO Kisan Logistics Limited has been dematerialised in accordance with the provisions of The Depositories Act,1996 & regulations made thereunder.The Registrar and Transfer Agent is Bigshare Services Private Limited having Registered office at 302, Kushal Bazar ,32-33, Nehru Place, New Delhi-110019 .

Explanatory Statement u/s 102 (1) of the Companies Act, 2013:

ITEM NO. 4:

The tenure of Sh.R.P.Singh (**DIN: 03016827**) as Managing Director –IKLL is expiring on June 30,2022 and as per Letter from IFFCO Dt:10/ 06 /2022 Holding Enterprise) and vide 12th Nomination & Remuneration Committee Meeting recommendation, his reappointment as Managing Director w.e.f. July1,2022 is proposed subject to Shareholders approval at the 18th Annual General Meeting as per the terms set out in the Notice.

The reappointment of Sh. R.P.Singh will be in accordance with section(s)196,197 & other applicable provisions of the Companies Act, 2013 read with Schedule V of the Co. Act,2013 without requiring the approval of Central Government.

The Board recommends the Shareholders for their approval by way of Ordinary Resolution for reappointment of Sh. R.P.Singh as Managing Director-IKLL w.e.f July1,2022 as he has extensive experience and in depth knowledge of the Fertiliser Industry for a period of over 40 years.

None of the Directors, Key Managerial Personnel of the Company except Sh.R.P.Singh may be deemed to be concerned or interested in the proposed resolutions.

ITEM NO. 5 (i):

The Tariff Authority for Major Ports(TAMP) has issued a Notification- G No. 231/ Case No. TAMP/59/2020- IKLL dt:June 11th, 2021 allowing revision of Scale of Rates on an application submitted by IKLL to TAMP. Accordingly, TAMP has revised the current Handling Charges from Rs.60.61 PMT to Rs. 70.63 PMT(Indexation Factor @0.33%)& has simultaneously revised Storage Charges for Captive Cargo .Consequent to TAMP Notification, IFFCO has approved payment of the revised Handling and Storage rates to IKLL in its Ordinary Course of business and at Arm's Length Pricing Principle vide 536th Board Meeting.

IKLL Board has approved the resolution vide 80th Board and 33rd Audit Meetings and recommends the Resolution as set out at Item no.6 (i)in the accompanying Notice for approval of Members due to modification in Agreement for revised rates between IKLL & IFFCO as per MCA Circular No. 30/2014, No. 1/32/2013-CL-V(pt.)dt:11/07/2014.

ITEM NO. 5 (li.)

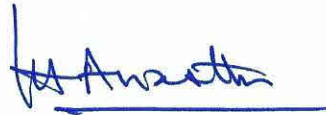
In order to augment its resources IKLL has entered into agreement with IFFCO Paradeep Unit for Sale/ Purchase of Rock Phosphate on dt: 11/05/2022, being one of the key Raw Materials required for manufacture of Phosphoric Acid at Paradeep Unit. It is being imported from different sources through Ships of carrying capacity of 80,000 MT to get freight advantage. There is a retail demand of around 6,000 MT Rock Phosphate (of minimum 30% P₂O₅) annually in the nearby area of Paradeep Unit and in Odhisa. IFFCO has approved the agreement between IFFCO Paradeep Unit & IKLL in its Ordinary Course of business and at Arm's Length Pricing Principle vide 165th Meeting of Sub- Committee on Marketing.

IKLL Board has approved the resolution vide 82nd Board and 35th Audit Meetings and recommends the Resolution as set out at Item no.6 (ii)in the accompanying Notice for approval of Members.

None of the Directors and the Key Managerial Personnel of the company and their relatives is concerned or interested , financially or otherwise, in the said resolutions at Item no. 5 (i) & 5 (ii).

By order of the Board
For IFFCO Kisan Logistics Limited

Place: New Delhi
dt: 17/06/2022



(Chairman)

DIN:00026019